

Computer Ethics, Misuse, and Criminal Law

Intersection of Technology and Ethics



Computer ethics:
principles of tech
morality



Necessity of legal
frameworks



Role in guiding
individuals, orgs,
govts



Accountability
and protection from
harm



Rise of computer
misuse
and cybercrime





Computer Ethics and Misuse: Key Concepts



Establishes legal standards, defines offenses, prescribes penalties



Computer ethics = study of ethical issues from computer & technology use. Includes privacy, security, intellectual property, accessibility, & digital divide. Impacts individuals, businesses, governments, & society



"Criminal law key in fighting computer misuse/cybercrimes. Ethics laws cover unauthorized computer access.



Covers unauthorized access to computer systems



Computer Misuse: Computer misuse refers to unauthorized or malicious activities conducted using computers or computer networks. This includes actions such as hacking, malware distribution, identity theft, cyberbullying, and online fraud

Legal Frameworks and Enforcement in Computer Ethics and Criminal Law

Governments, Law Enforcement, and Challenges



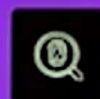
Legal Frameworks: Governments enact legislation targeting computer-related crimes



Range from general statutes to specialized cybercrime laws



International treaties facilitate cooperation against cross-border threats



Enforcement and Prosecution: Agencies investigate and apprehend perpetrators



Digital forensics gather evidence from devices and networks



Challenges and Emerging Issues: Rapid technology advancements pose new ethical dilemmas and legal considerations



Addressing challenges requires collaboration between policymakers, technologists, legal experts, and ethicists

Computer Misuse: Evolution and Examples



Q1: What constitutes computer misuse and has it evolved with advancement of technology?



"Using a computer to harm others or their property is computer misuse."

forms of computer misuse:



Q2: Common examples of computer misuse crimes?

Malware distribution

Data breach

Q1: Definition and Changes in Computer Misuse

Unauthorized access

Cyberbullying or Harassment

Protecting Organizations from Computer Misuse: Legal and Technological Measures

Q3: Preventing Data Theft and Unauthorized Access



Handover of company
Laptops



Limited employee access



Legal agreements with
clients or employers



Legal action against
violators



Cyber Ethics:



Cyber ethics are the basic
ethics and etiquette that
must be followed while
using a computer system

Essential Ethical Principles in the Digital World



Respect client privacy and confidential data



Work with honesty and avoid false information



Fairness and justice among employees

Uniqueness issue in digital world

Ban discrimination in hiring

Q5: Privacy, Honesty, Fairness, Safety

. It ensure that their data remain unique and cant make spare copy without proper authorization

Ensure data security

Branch of Applied Ethics

Framework of Cyber Ethics



Definition
and Scope
of Applied Ethics



Key Principles
of Cyber Ethics



Ethical Decision
Making in Cyber
Context



Legal
and Regulatory
Compliance
in Cyber Ethics





Cyber Ethics

Moral, Legal, Ethical
Issues in Technology

Security issues

Privacy

Online
behavior

Intellectual
property

Accountability

Core ethical principles

Security measures

Ethical design
and development



Approaches to Cyber Ethics

Identifying Risks
and Implementing Ethical
Practices

Identify

Assess risk
and impact

Implement ethical
practices
and policies

Laws against cyber
ethics

Prevention
of electronic crimes
act 2016

laws and regulation
to overcome the security
problems

Data breach notification laws

Payment card industry

Data protection law

Cyber security regulation



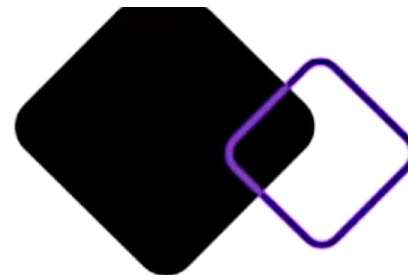
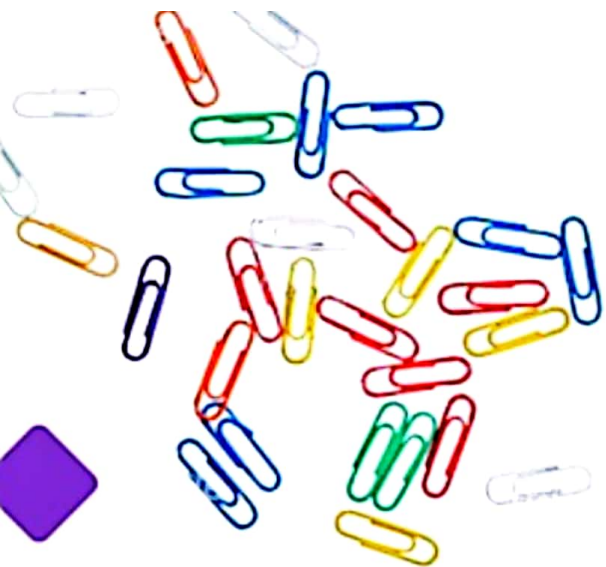


Cyber Ethics and Branches of Applied Ethics

- Privacy
- Integrity
- Security
- Respect
- Accountability

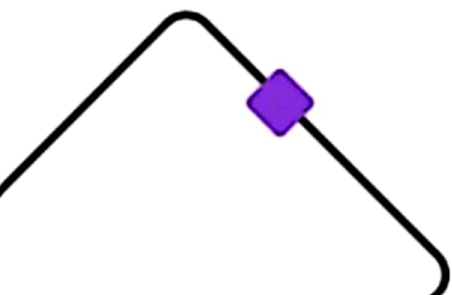
- Branches of applied ethics
- Business ethics
- Legal ethics
- Media ethics
- Professional ethics





Structure of a Computer Contract

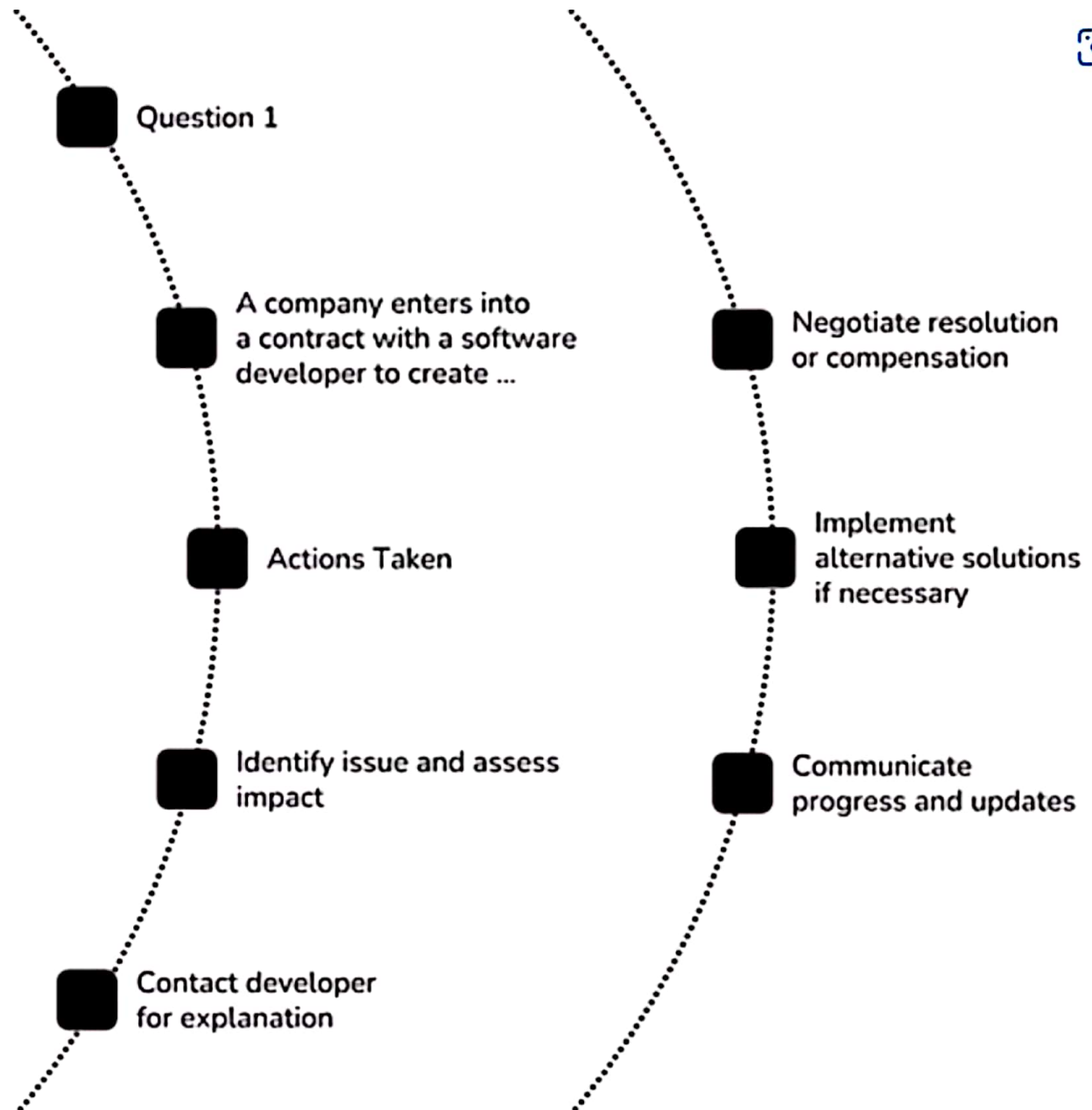
Introductory Part





Breach of Contract by Software Developer

Our Commitment
to Resolution
and Customer Satisfaction



Cloud Service Provider's Negligence and Customer Compensation

Our Commitment to Upholding Service Standards



Question 2:



A company enters into a contract with a cloud service provider but experiences downtime and data loss due to the provider's negligence



Customers are entitled to compensation for downtime and data loss due to our negligence



We prioritize prompt issue resolution and prevention of future occurrences



Your satisfaction is our priority



"Applying contract law to software ...



Question 3:



Software licensing agreements and service contracts are crucial legal instruments in the technology industry



Contract law principles ensure enforceability and fairness to all parties involved



mutual assent



How do contract law principles apply to software licensing agreements and service contracts in the technology industry?



They govern the relationships between software developers, vendors, and end-users



Legal capacity



offer and acceptance

Establishing a Legally Binding Contract with Terms of Service

Question no 4

A consumer purchases a software subscription online and agrees to the terms of service ...



Outlines key terms and conditions of software subscription



Informs consumer about their rights and obligations



Clarifies software license scope and permitted usage



Details payment terms and consequences for non-payment



Discloses software features, limitations, and user responsibilities



OBJECT OF CONTRACTS



Define the purpose and scope
of the contracts



Determine the rights
and obligations of each party



Specify the deliverables
and timelines



PAYMNT TERMS

Significance of Defining the Object of a Contract in Computer Misuse

Question 1: What is the significance of clearly defining the object of a contract in the context of computer misuse?



Clearly defining the object of a contract helps ensure both parties understand their obligations



Reduces risk of misuse and unauthorized access



Modifying the object of a contract requires careful consideration to prevent misuse and maintain data security

Contract Modification and Data Security



Question2: Can the object of a contract be modified after the agreement is made, and what implications does this have for preventing computer misuse?



Modifying a contract after formation requires careful consideration



Changes should not create opportunities for computer misuse or compromise data security



Question3: What steps can organizations take to safeguard their intellectual property and confidential information from unauthorized access or disclosure?



Orgs can use access controls, encryption, training, and agreements to protect IP and confidential info

"Legal remedies for confidentiality and IP breaches"



QUESTION 4



Legal remedies for breach of confidentiality or unauthorized use of intellectual property?



Injunctions to stop the breach and prevent further damage



Damages to compensate for losses and profits



Restitution to restore the status quo



Equitable relief to address the specific circumstances



QUESTION 5



Impact of payment terms on financial stability and cash flow of parties in contract?

Calculating Payment for Delay Charges

Penalty Clauses



Understanding
the delay charges
calculation
process



Consequences
of breaching
penalty clauses



Client's
responsibility
in software
contract

Professional Contracts and Payment Terms



Professional contracts outline payment terms such as amount, timing, and method of payment



These details ensure clarity and mutual understanding between the parties involved



Specifying payment terms upfront helps prevent disputes and ensures both parties know their financial obligations

Ensuring Fair and Transparent Payment Terms and Contract Clauses



Clearly articulate all terms and conditions in the contract document



Use easily understandable language



Engage in open communication with the other party



Address any questions or concerns



Changes in Project Scope and Timelines



Changes in project scope or timelines may impact payment calculations



Necessitating additional work or resources



Professionals can address these changes ethically by engaging in open and honest communication with the client



To discuss the implications of the changes



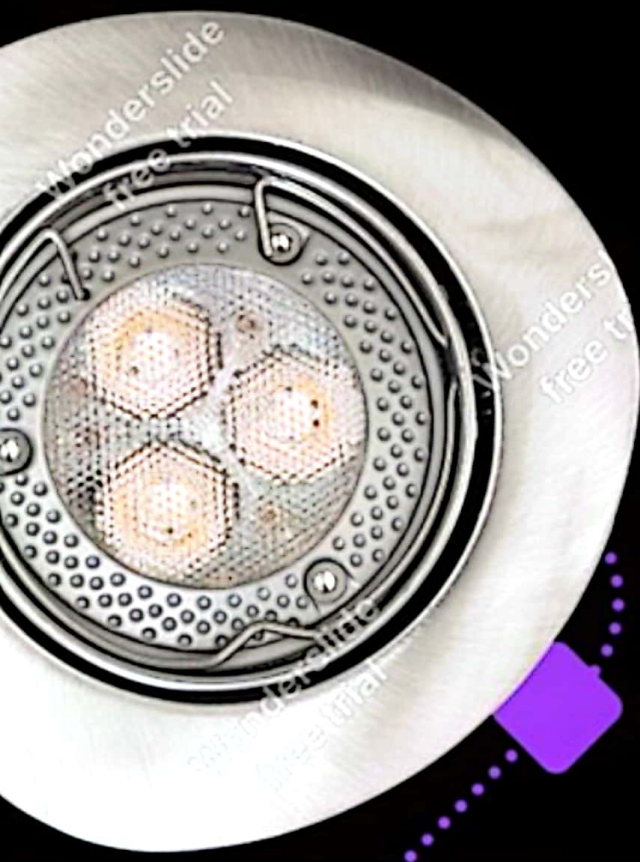
They may negotiate a fair adjustment to the payment terms to compensate for the extra work required



Ensuring that both parties are treated fairly and equitably

Transparency and Ethical Conduct in Payment Terms and Contract Clauses

The Importance of Openness and Honesty



Reduces likelihood of disputes and misunderstandings



Promotes openness, honesty, and trust



Fosters integrity and ethical standards



Allows both parties to fully understand rights and obligations

Conclusion

The Nexus of Computer Ethics, Misuse,
and Criminal Law



Promote
ethical conduct
and legal
compliance



Implement
robust legal
frameworks



Create a safer
and more
ethical digital
environment

